

1.

CASE #	CASE NAME	HEARING NAME
CVRI2305207	DOE M.Q. VS LAKE ELSINORE UNIFIED SCHOOL DISTRICT	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

Moving party: Defendant Lake Elsinore Unified School District
Responding party: Plaintiff Jane Doe M.Q.

Jane Doe M.Q. ("Plaintiff") alleges that she was raped by a custodian, Edwin Giron ("Giron"), when she was an elementary school student at Lake Elsinore Unified School District ("District"). The operative complaint is the First Amended Complaint ("FAC"), which asserts causes of action for negligence, sexual assault/sexual battery, and intentional infliction of emotional distress.

District brings this motion. It seeks an order requiring Plaintiff and her counsel to immediately sequester all documents bearing Bates numbers M.Q. – Lake Elsinore 000006 through 000104. It asks that these documents not be further disclosed or transmitted and Plaintiff to identify all persons and entities whom the records were disclosed to. District asserts that the documents were produced on 12/20/24. The documents at issue are unrelated to Plaintiff's claims and pertain to payroll matters, personal contact information, employee-identification information, retirement, resignation, and employment events occurring years after the incident at issue. District sought the information back on 7/14/26, but Plaintiff has refused to return the documents. It argues that the documents violate Giron's right to privacy.

In opposition, Plaintiff contends that this motion should be denied. She argues that District reviewed, redacted, and intentionally produced the documents at issue. She asserts that there is already a stipulated protective order that protects the documents. She contends that the documents cover the time period directly relevant to this matter. She asserts that any objections raised by District have been waived and there is no authority allowing the documents at issue to be clawed back. She asks for sanctions in the amount of \$3,400.

In the reply, District contends that it asserted objections on the grounds of privacy and asserts that it could not waive Giron's independent right to privacy. It reasserts arguments set forth in its moving papers. It argues that sanctions are not warranted.

Analysis

District seeks a protective order under CCP §§ 2031.060 and 2017.020. Under CCP § 2031.060(a), when documents have been demanded, the party to whom the demand had been directed or any other party or affected person, may move for a protective order. The court may grant such a protective order when good cause is

shown that justice requires such an order to protect any party or person from unwarranted annoyance, oppression, embarrassment, or undue burden or expense. Under CCP § 2017.020, “[t]he court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery or admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person.”

The evidence at issue is Giron’s personnel record. Giron was dismissed from this matter on 7/31/24. The discovery requests at issue were propounded on 10/10/24, after Giron had been dismissed from this matter. Responses were provided on 12/20/24, which included portions of Giron’s personnel record that pertains to events that occurred years after the incident at issue in this matter and include information like his personal telephone number, retirement age, age-related information, and signature. (Declaration of Katrina J. Valencia, ¶¶ 4-9.) Employment records are generally covered by the constitutional right of privacy. (*Board of Trustees v. Superior Court* (1981) 119 Cal. App. 3d 516, 528; *El Dorado Sav. & Loan Ass’n v. Superior Court* (1987) 190 Cal.App.3d 342, 345-346.) While Plaintiff contends that the information has already been produced and District has waived any objections to the documents at issue, District does not have the ability to waive Giron’s right to privacy. (See *Boler v. Superior Court* (1987) 201 Cal.App.3d 467, 471, f. 1.) Additionally, where privacy rights of third parties are at issue, the appropriate procedural requirement before production is to occur, is notice to the third party. “[W]here third-party privacy interests are involved, the target of discovery has an affirmative duty to notify the third parties of the discovery request and give them an opportunity to appear and object.” (*Ibid.*) Before the information at issue was produced, Giron should have been provided with notice, to give him the opportunity to object to disclosure. This was not done.

Plaintiff is correct that no authority has been provided that specifically allows for the clawing back of the discovery at issue. The Court could find no cases that discuss this fact scenario. However, no authority has been provided that finds that the Court is precluded from clawing back information protected by a third party’s privacy right. The court has the ability to limit the scope of discovery and the list of possible court actions ordered in connection with a protective order are not limited to those enumerated in the statute. It would seem that the Court would have the power to act when third parties’ privacy rights have been violated. Since notice was supposed to be given to Giron before the documents were produced. The Court will continue this motion and order District to provide Giron with notice of this motion, the continued hearing date, and to invite him to notify the Court of any objections he has to the evidence at issue. Once this has occurred, the Court can apply the required balancing test to determine if the protective order should be granted.

Motion is continued to 10/12/2026 at 8:30 a.m. in Dept. 6. Defendant, Lake Elsinore USD shall give notice to Giron and all parties of the continuance.